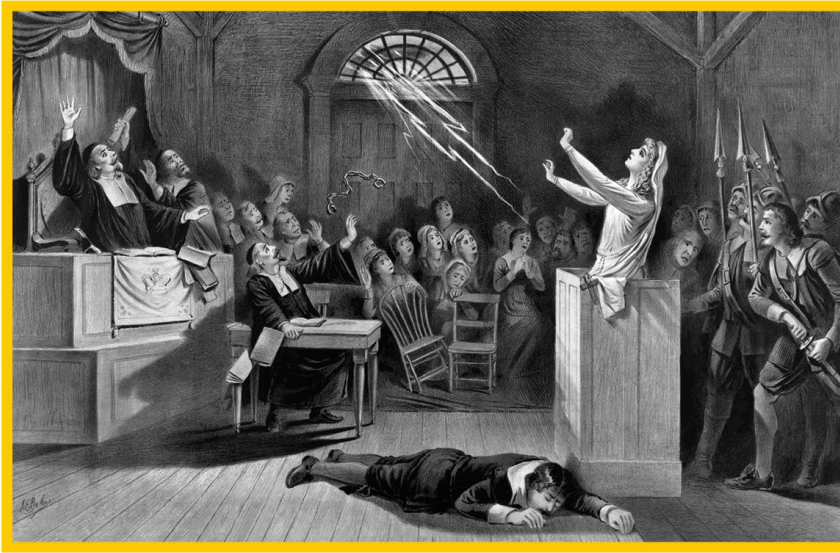


See also: The origins of canon law 42–47 ■ Trial by ordeal and combat 52–53
 ■ The trial of Galileo Galilei 93 ■ *Miranda v. Arizona* 254–255

Evidence at the Salem witch trials

The key evidence used in most of the cases at Salem was spectral evidence—testimony from victims who told of seeing an apparition of the accused witch while they were suffering a fit. After some debate, it was decided that this constituted valid evidence because a person must give the Devil permission to take their form, indicating that the accused had entered into a pact with the Devil.

The judges in Salem used the precedent of a witch trial in Bury St. Edmunds, England, in 1662, during which spectral evidence was ruled admissible by judge Sir Matthew Hale. Further evidence used to convict witches included finding ointments or books of the occult in their homes; the fits of the victims ceasing when touched by the accused; or the discovery of a “witches’ teat”—a mark on the body.



clear to the highly religious community in Salem that it must be the work of the Devil. The girls accused three local women of witchcraft: a slave named Tituba; a poor elderly woman, Sarah Osborne; and a homeless beggar, Sarah Good. The women were arrested and Tituba, perhaps hoping to save herself, confessed to meeting with the Devil. This set off a chain of accusations over the coming months and increasing numbers of arrests.

The trials

With the jails filling up, local governor William Phips set up a special court of Oyer and Terminer (meaning “to hear” and “to decide”) to start hearing cases. The judges had no formal legal training. On May 27, 1692, the first of the trials went ahead, and local gossip Bridget Bishop was found guilty of witchcraft and was later hanged. Preacher Cotton Mather commented, “There was little occasion to prove the witchcraft, it being evident and notorious to all beholders.” The

A somewhat fanciful engraving from c. 1892, depicting the Salem witch trials taking place in a courtroom, with a woman conjuring power and a man passed out on the floor.

court was criticized for allowing spectral evidence (see box, right), but the trials continued, and over the next few months, a further 12 women and six men were found guilty and put to death.

One of the accused, 81-year-old Giles Corey, refused to enter a plea, so he could not be tried. In a medieval practice known as *peine forte et dure* (French for “hard and forceful punishment”), he was laid under a wooden board that was weighted down with stones until he could not breathe, in an attempt to extract a plea or a confession. After 2 days, Corey died.

Recognition of injustice

When Phips’s own wife was questioned over witchcraft, he scrapped the court of Oyer and Terminer and instigated a Superior

Court of Judicature, which did not allow spectral evidence. Only three of the 56 people subsequently accused were found guilty. This seemed to stem the flow of accusations and, by May 1693, all those still in prison were released.

In January 1697, the General Court instigated a day of fasting and reflection to atone for the mistakes made, and a key judge, Samuel Sewall, publicly apologized. This marked a growing recognition of the injustice of these trials and of the disproportionate punishments employed. A dark episode in American history, the Salem witch trials are a reminder of the importance of due process in protecting innocent people. ■